

★ ★ ☆ ★ ★ AMERICA'S CHILDREN ACT ★ ★ ☆ ★ ★

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BACKGROUND

250,000+ children and young adults have been lawfully raised in the U.S. while their families lived here on long-term visas as skilled workers and small business owners. These children have:

- **Grown up in American communities**
- **Attended U.S. schools and colleges**
- **Built their lives entirely in America**

Current immigration laws have a loophole that prevents a path forward for them even if their parents are still waiting in line for green cards. Despite being raised and educated here with lawful status, children on dependent visas are only eligible to stay until their 21st birthday. Because of **decades-long green card backlogs** & **problems with our legal immigration system**, many turn 21 before a visa number for a green card becomes available. As a result, they lose their status and their opportunity to receive a green card.

They must then obtain another status or leave behind their families—and the only country they have ever known. Their time spent lawfully growing up and being educated in the United States is not taken into account to extend their stay, obtain a green card, or switch to another visa.

This is a loss to America's communities and employers. Most of these young adults have earned degrees in **STEM and health care fields**—ready to contribute to our workforce and economy. However, when our immigration system forces them to leave:

- **American employers lose homegrown, skilled talent they helped educate**
- **Families are split after years of following the law and living in legal status**
- **The U.S. loses talent it raised and educated to global competitors**

We cannot maintain our competitive edge on the world stage if we continue to force out American-raised and educated children.

STATISTICS

250,000+

Children of
Long-Term
Visa Holders

5

Average Age of
Arrival in the
U.S.

15+

Years Spent
Growing Up in
the U.S.

87%

Studying /
Working in
STEM &
Healthcare

**\$100
Billion+**
Net Fiscal
Benefit

LEGISLATION AT A GLANCE

The **America's Children Act** is a *bipartisan, bicameral* bill that fixes this loophole to allow children of long-term visa holders who grow up in the U.S. to stay and contribute here. It would:

- ★ Allow **opportunity to apply** for permanent residency for those brought to the U.S. lawfully as children, who have **maintained status for 10 years** (including 8 years as dependents) & **graduated from a U.S. college or university**
- ★ Establish age-out protections that lock in a dependent's age based on the date their parent files the green card application, rather than the final action date
- ★ Provide work authorization for those qualifying for age-out protection



AMERICA'S CHILDREN ACT OUR STORIES



Laurens van Beek immigrated from the Netherlands to Iowa at age 6 on his family's E-2 visa, where they started a small business. **Raised entirely in the U.S.**, Laurens grew into a talented software engineer with a degree from the *University of Iowa* and a deep commitment to contributing to the country he considered home. After **aging out of his dependent status at 21**, he legally transitioned to a student visa, then to a work permit under the OPT program. He had a full-time job with an Iowa based DNA Technology company and applied multiple times for an H-1B visa—each time denied in the lottery system. Despite having critical STEM skills in a high-demand field and always following the law, Laurens was ultimately forced to leave the U.S. in 2022. In his 2023 Senate Budget Committee testimony, he stated:



"Despite going to great lengths to follow every letter of U.S. immigration law, my future in the only country I call home is obscured in red tape."

Laurens now continues his career from Belgium for the same Iowa company—but not in the country that educated him, nurtured his talents, and benefited from his skills. His taxes now benefit Belgium instead of the United States. His story illustrates the loss America faces when it forces homegrown talent out of the country.



Roshan Taroll, a Boston College graduate working at Applied Materials—a CHIPS Act-funded American semiconductor company—represents the kind of skilled, homegrown talent the U.S. seeks to retain. Originally from India, Roshan moved to the United States at the age of 10 and was raised in Boston, where he completed his education and shaped his identity. Despite growing up in this country, graduating from an American university, and contributing to a vital U.S. industry, outdated immigration policies have left him with no path to remain. After aging out of his dependent visa and being denied a chance to stay through the H-1B lottery, Roshan took his skills, education, and experience to Taiwan, where he will continue to work for the same company. His forced departure is not only a personal loss but also **a missed opportunity for the United States to retain talent it helped raise and educate.**

"It saddens me to know that my skills and tax dollars will be contributing to another region when they should be contributing to the only place I call home—the United States."

Erin Crosbie spent nearly 17 years building a life in Florida after arriving from Ireland at age 7 with her family, who started a small business. A graduate of the University of South Florida with a nursing degree, Erin dreamed of becoming a critical care nurse, especially after witnessing the toll of the COVID-19 pandemic. But despite being trained in the U.S. and ready to serve in a strained healthcare system during the pandemic, her immigration status became a barrier. Hospitals wanted to recruit her, but her status and barriers in our legal immigration system made it difficult. This left her with no choice but to leave behind her home, friends, and family to return to Ireland. After witnessing both their daughters being forced to leave, her parents gave up their small business and moved back after two decades of contributing to their Florida community. Her departure is a painful reminder of how loopholes in our immigration policy continue to force out not only American-educated professionals at a time when their skills are urgently needed, but also high skilled workers and small business owners who leave due to their children being forced to leave.



"It was hard. They weren't saying 'no' because of me... It was because of something that was out of my control. I felt powerless."

Aging Out of the Immigration System

Age

Average age during each milestone or life event of the child of long-term visa holders

Status

The most common type(s) of legal status maintained during each milestone

